

1. The Spalding-Barr Absolute Immunity Doctrine: The modern doctrine of executive immunity was born with the Supreme Court's decision in Spalding v. Vilas, 161 U.S. 483 (1896). The suit was brought by an attorney who represented numerous postmasters in securing salary readjustments under a recent enactment of Congress. The attorney contended that he had been libeled, to the detriment of his contractual agreements, when the Postmaster General advised the claimants in a letter that an attorney's services were not needed to secure relief. The attorney alleged that the Postmaster General had acted maliciously and sought damages from him.

The Court held that the Postmaster General was immune. In the absence of any direct support at common law for such an immunity, the Court looked to the general policies underlying its seminal judicial immunity decision in Bradley v. Fisher, 80 U.S. (13 Wall.) 335, as well as to English decisions where military officers had been found immune from libel suits by subordinates (see 161 U.S. at 496-98). By analogy, the Court concluded that withholding immunity

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12/ (Cont.) to justify the creation of constitutional tort liability for nongovernmental actors. See Reuber v. United States, 750 F.2d 1039, 1053-62 (D.C. Cir. 1984) (private employee working at privately operated government facility may have constitutional tort remedy against corporate employer and its officers for corporation's personnel action that allegedly infringed on First Amendment interests); see also id. at 1063-65 (op. of Bork, J., concurring in judgment). In view of the uncertainty in this area, any argument that a nonfederal employee (or entity) is entitled to immunity should be approved by Torts Branch.